

23STCV05502 23STCV05502

County: los-angeles

Division: Civil Law and Motion

Department: 729

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Case Number: 23STCV05502 Hearing Date: August 5, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE

RULING

WILLIAM

MARSHALL,

vs.

MARCO FERNO,

et al.

Case No.: 23STCV05502

Hearing Date: August 5, 2026

Defendant

Farhad Yaghoubi's unopposed renewed motion for terminating sanctions is granted. Pro per Plaintiffs Clarence Tate's and William Marshall's Fourth Amended Complaint is dismissed in this matter pursuant to C.C.P. §§20330.290(c), 2031.300(c), and 2023.030(d)(3).

Defendant

Farhad Yaghoubi's request for issue and evidentiary sanctions is denied as moot.

Defendant

Farhad Yaghoubi's request for monetary sanctions against pro per Plaintiffs Clarence Tate and William Marshall is denied.

Defendant

Farhad Yaghoubi's request to find pro per Plaintiffs Clarence Tate and William Marshall in contempt of court is denied.

Defendant Farhad Yaghoubi's motion to deem

Request for Admissions (Set One) admitted against pro per Plaintiff Clarence Tate is denied as moot.

Defendant Farhad

Yaghoubi [erroneously sued as Marco Ferno] ("Yaghoubi") ("Moving Defendant") moves unopposed for a renewed motion for terminating sanctions, evidentiary sanctions, and issue sanctions against pro per Plaintiffs William Marshall ("Marshall") and Clarence Tate ("Tate") (collectively, "Plaintiffs"). (Notice Motion, pg. i; C.C.P. §§2030.290(c), 2031.300(c).)

Moving

Defendant moves for this Court to award additional monetary sanctions against Plaintiffs in the amount of \$1,500.00.
(Notice Motion, pg. i; C.C.P. §§177.5, 178.)

Moving

Defendant moves for this Court to find Plaintiffs in contempt of court for disobeying this Court's July 22, 2025, and April 13, 2026, orders. (Notice Motion, pg. i.) Moving Defendant also moves for any other and further relief as the Court deems just and proper, on the grounds that Plaintiffs have failed to comply with two of the Court's prior sanctions order dated July 22, 2025, and April 13, 2026, requiring payment of sanctions and ordering Plaintiffs to serve verified discovery responses to Defendant. (Notice Motion, pg. i; C.C.P. §§2023.010, 2023.030, 128.5, 177.5.)

Moving Defendant moves to deem Requests for Admissions (Set One) ("RFA 1") directed to Plaintiff Tate as conclusively established against Plaintiff Tate. (Notice Motion,

Background

On July 22, 2025, the Court granted Moving Defendant's unopposed motions to compel Plaintiffs to provide verified responses without objections to Form Interrogatories (Set One) ("FROG"), Special Interrogatories (Set One) ("SROG"), and Request for Production (Set One) ("RFP") within 30 days of the ruling, and granted sanctions against each Plaintiff in the amount of \$882.50. (7/22/25 Minute Order, pg. 2 of 3.)

On February 25, 2025, Moving Defendant filed an initial motion for terminating sanctions and associated relief against Plaintiffs before the formerly numbered Department 54 (now Department 512), which was denied without prejudice on April 13, 2026, as to the request for terminating, evidentiary and issue sanctions; granted as to Moving Defendant's request for monetary sanctions; and denied as to Moving Defendant's motion to deem RFAs admitted, with the Court ordering Plaintiffs to serve verified responses, without objection within 15 days of the ruling. (See 4/13/26 Minute Order.) With regard to the request for terminating sanctions, the Court stated, "[t]he Court will allow Plaintiffs one more opportunity to comply with their discovery obligations. If Plaintiffs again fail to comply, Defendant may again seek such sanctions." (See 4/13/26 Minute Order at pg. 3 of 4.)

On May 28, 2026, Plaintiff Tate filed a notice of bankruptcy stay as to both Plaintiffs. (5/8/26 Notice of Stay of Proceedings.) This Court takes judicial notice of the docket in In re: Clarence Tate, C.D. Cal. Bankruptcy Court, Case No. 2:26-bk-12993-DS, which provides that only Plaintiff Tate was properly before the C.D. Cal. Bankruptcy Court, and the stay only pertained to him. The Court also takes judicial notice of the docket in In re: Clarence Tate, which provides that the case was terminated on July 1, 2026. Therefore, there is no existing bankruptcy stay in this matter.

Moving Defendant filed the instant renewed motion on May 28, 2026. As of the date of this hearing

no opposition has been filed. Moving

Defendant filed a reply on July 29, 2026, noting that no opposition had been filed.

On May 29,

2026, Plaintiffs requested, and on June 1, 2026, were granted peremptory challenges to Judge Karine Mkrtchyan in Department 512. (See 6/1/26 Court Order Re: Peremptory Challenges.)

On June 1,

2026, the instant case was transferred from Department 512 to Department 729.

On June 30,

2026, this Court ruled on Moving Defendant's requests to deem Requests for Admissions (Set Two) ("RFA 2") admitted as to each Plaintiff and awarded sanctions for Moving Defendant against Plaintiffs in the amount of \$882.50, with sanctions due by August 1, 2026. (See 6/30/26 Minute Order.) The Court also granted Moving Defendant's motion to compel the deposition of Plaintiff Tate and ordered sanctions against Plaintiff Tate in the amount of \$2,365.00, due by August 1, 2026. (See 6/30/26 Minute Order.)

Terminating Sanctions

The Court, "after

notice to any affected party . . . and after opportunity for hearing," may impose terminating and/or monetary sanctions for misuses of the discovery process. (C.C.P. §§2023.030(a), (d).) Misuses of the discovery process include failing to respond or to submit to an authorized method of discovery and disobeying a court order to provide discovery. (C.C.P. §§2023.010(d), (g).)

"A decision to order

terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) When deciding whether to impose terminating sanctions, courts generally weigh three

factors: (1) whether the party subject to the sanction acted willfully, (2) the detriment to the party seeking discovery, and (3) the number of formal and informal unsuccessful attempts to obtain discovery. (Creed-21 v. City of Wildomar (2017) 18 Cal.App.5th 690, 702; Lang v. Hochman (2000) 77 Cal.App.4th 1225, 1246.) Nonmonetary sanctions require evidence of willful violations of discovery orders or a history of egregious abuses of discovery. (R.S. Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486.)

Here, there is a history of abuse of the discovery process that justifies this Court granting terminating sanctions. The Court previously attempted lesser corrective measures through monetary sanctions. Those sanctions failed to secure compliance. Plaintiffs' refusal to obey the Court's July 22, 2025, and April 13, 2026, rulings demonstrate willful non-compliance. Plaintiffs have failed to produce a single document, including the alleged written lease agreement, which is central to this lawsuit and Moving Defendant's defense. Even this Court's earlier threat of imposing terminating, issue, and evidentiary sanctions was not sufficient to ensure compliance. (See 4/13/26 Minute Order at pg. 3 of 4.)

Moving Defendant has also made numerous formal and informal attempts to obtain Code-compliant discovery, all of which have been unsuccessful. (See Decl. of Oh-Kubisch ¶¶4-16, Exhs. 1-2.)

Accordingly,

Moving Defendant's motion for terminating sanctions is granted. Pro per Plaintiffs Clarence Tate's and William Marshall's Fourth Amended Complaint is dismissed in this matter pursuant to C.C.P. §§20330.290(c), 2031.300(c), and 2023.030(d)(3).

Issue and Evidentiary Sanctions

In light of the Court's ruling on Moving Defendant's request for terminating sanctions, Moving Defendant's request for issue and evidentiary sanctions is denied as moot.

Monetary
Sanctions

Moving

Defendant requests monetary sanctions against Plaintiffs pursuant to C.C.P. §177.5 in the amount of \$1,500.00, payable to the Court. In light of the fact that monetary sanctions appear to have had no effect on ensuring Plaintiffs' compliance with this Court's ruling, Moving Defendant's request for monetary sanctions is denied.[2]

Contempt
Sanctions

Moving Defendant requests contempt sanctions against Plaintiffs pursuant to C.C.P. §178. (See Motion, pgs. 6-7.) "A judge has a duty to exercise the power [to punish for contempt] to protect the integrity of the court and the judicial process [citation], but he must do so 'with great caution, lest [he] stifle the freedom of thought and speech so necessary to a fair trial under our adversary system.'" (Moore v. Superior Court (2020) 57 Cal.App.5th 441, 458, internal citation omitted.) The Court declines to exercise its discretion to order a hearing on contempt sanctions.

Accordingly, Moving Defendant's request for contempt sanctions is denied.

Motion to Deem Request for Admissions
(Set One) Admitted

In light of the Court's ruling on Moving Defendant's motion for terminating sanctions, Moving Defendant's motion to Deem RFA 1 admitted against Plaintiff Tate is denied as moot.

Conclusion

Moving Defendant's unopposed motion for terminating sanctions is granted.

Moving Defendant's motion in the alternative for issue and evidentiary sanctions is denied as moot.

Moving Defendant's request for monetary sanctions is denied.

Moving

Defendant's request for contempt sanctions is denied.

Moving

Defendant's motion to deem RFA 1 admitted against Plaintiff Tate is denied as moot.

Moving Party to
give notice.

Dated: August____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court

[1] The Court notes Moving Defendant's notice of motion requests this relief twice against Plaintiff Tate. To the extent Moving Defendant's body of the motion requests this relief against both Plaintiffs, Moving Defendant's notice is defective as to Plaintiff Marshall and cannot be granted.

Further, a motion to deem admitted requests for admissions is a discovery motion that is not to be combined with another motion or submitted as an omnibus motion. A motion must be brought separately against each party and discovery method at issue.

The instant motion should have been filed as at least two separate motions and two filing fees paid.

Instead, Moving Defendant filed only one motion and paid one filing fee.

"[P]ayment of filing fees is both mandatory and jurisdictional." (Hu v. Silgan Containers Corp. (1999) 70 Cal.App.4th 1261, 1269.) Therefore, Moving Defendant owes this Court \$60.00 in filing fees.

[2] The Court notes for clarification that these monetary sanctions were not sought by Moving Defendant for compensation for attorneys' fees. (See Motion, pg. 7.)